

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**COMPLAINANTS’ MOTION REQUEST TO ACCEPT LATE FILING OF
COMPLAINANTS’ PROPOSED FINDINGS OF FACT AND APPENDIX ON REMAND,
AND FOR OTHER RELIEF**

Pursuant to Rules 1, 10, 69, 71 and 102 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this motion requesting that the Presiding Officer accept the late filing of Complainants’ Brief, Proposed Findings of Fact and Appendix on Remand for the exceptional circumstances set forth below and as justice may require, and allow for additional time for the filing of respondents’ opposition papers and complainants’ reply pursuant to a revised briefing schedule.

RELEVANT PROCEDURAL HISTORY

On August 5, 2016, complainants MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY initiated this proceeding against respondents Marine Transport Logistics, Inc. (MTL) and Dimity Alper alleging that Respondents violated sections 41102(c), 41104(3) and 41104(10) of the Shipping Act, and the Commission's regulations at Part 515, in

connection with certain vehicles owned by Complainants, to wit: a 2006 Mercedes SL65, a 2011 Porsche Panamera, and three motorcycles- a 2004 Harley Davidson FXDXI, a 2007 Harley Davidson FXD, and a 2000 Harley Davidson XL883.

On August 11, 2016, the Secretary of the Commission issued a Notice of filing of Complaint and Assignment assigning this proceeding to the Office of the Administrative Law Judges. Respondent Alper filed his Answer on August 31, 2016, and respondent MTL filed its Answer on September 6, 2016.

On September 15, 2016, the Presiding Officer *sua sponte* issued an Order directing Complainants to show cause by October 3, 2016, "why the allegations in their Complaint regarding the 2006 Mercedes SL65 and [the Harley Davidson motorcycles] should not be dismissed for lack of subject matter jurisdiction or for failure to state a claim upon which relief can be granted." Thereafter the parties submitted their respective briefs in response to the Order to Show Cause, and the Presiding Officer issued the Initial Decision Partially Dismissing the Complaint on January 17, 2017 (the "ID").¹

On January 27, 2017 the Presiding Officer also issued an Order Staying Proceedings pending the Commission's decision on exceptions to the January 17, 2017 ID. Complainants' Exceptions to the ID were filed on February 8, 2017. Respondents' Reply to Complainants' Exceptions were filed on March 2, 2017. Between March 2, 2017 and February 22, 2018, the parties filed additional motions and status reports with the Presiding Officer and Commission.

On February 22, 2018, counsel for respondent MTL filed a Motion to be Relieved as Counsel for MTL. On February 26, 2018, the Commission served a Notice of Extension of Time, extending its time to serve a Final Decision on the Exceptions to the ID to June 26, 2018.

¹ The ID did not dismiss Complainants' claims in the Complaint with regard to the Porsche which is at issue in this matter.

On May 2, 2018, MTL filed a Stipulation of Substitutional of Counsel and Notice of Appearance for Mr. Pogil. On June 12, 2018, the Commission served an Order Granting MTL's former counsel's Motion to Withdraw and extended the deadline for the Final Decision to December 26, 2018. On December 20, 2018, the Commission, *sua sponte*, served a Notice of Extension of Time, extending the deadline for the Final Decision to June 26, 2019. On December 26, 2018, the Commission, *sua sponte*, served a Notice of Suspension of Filing Deadlines "...until such time as the Commission is able to resume normal operations".

On May 30, 2019, Chief ALJ Guthridge served a Notice of Reassignment, assigning this matter for all purposes to the Presiding Officer (Honorable Erin M. Wirth). On June 12, 2019, the Commission, *sua sponte*, served a Notice of Extension of Time, extending the deadline for the Final Decision to October 28, 2019.

On October 21, 2019, the Commission, *sua sponte*, served a Notice of Extension of Time, extending the deadline for the Final Decision to April 22, 2020. On April 20, 2020, the Commission, *sua sponte*, served a Notice of Extension of Time, extending the deadline for the Final Decision to June 22, 2020. On June 22, 2020, the Commission, *sua sponte*, served a Notice of Extension of Time, extending the deadline for the Final Decision to September 22, 2020. On September 10, 2020, the Commission, *sua sponte*, served a Notice of Extension of Time, extending the deadline for the Final Decision to November 20, 2020.

On October 29, 2020, the Commission issued a Memorandum Opinion and Order remanding complainants' section 41102(c) claim regarding the Mercedes for further proceedings. In addition, the claim regarding the Porsche had been stayed pending the Commission's order. On October 30, 2020, an order was issued requiring the parties to file a status report addressing the next steps in this proceeding.

On December 2, 2020, the parties filed a joint status report (“JSR”). In the JSR, complainants identified five areas where they requested additional discovery, and both sides stated their positions on each discovery request. On December 10, 2020, the Presiding Officer issued a Remand Scheduling Order which granted, in part, complainants’ request for additional discovery. The Order directed MTL to produce the above referenced documents by January 5, 2021.

On January 27, 2021, complainants filed a Motion for Discovery Related Sanctions and Other Relief Due to Respondents' Failure to Comply with the Directives of the Presiding Officer. On February 5, 2021, the Presiding Officer served an Order Denying Complainant's Motion for Discovery Related Sanctions, and ordered Complainants to file their Remand Brief, Proposed Findings of Fact and Appendix on or before February 22, 2021.

On February 22, 2021, the undersigned counsel for Complainants filed a Motion to Enlarge the Deadline for the Filing of the Parties’ Remand Briefs in this matter, which was granted by the Presiding Officer by Order of March 1, 2021, and which directed complainants to file their Remand Brief, Proposed Findings of Fact and Appendix on or before March 9, 2021.

Due to an ongoing medical issue (the details of which will be disclosed to the Presiding Officer, together with supporting documentation for *in camera* inspection if requested by the Presiding Officer) the undersigned counsel conferred with counsel for respondents on March 11, 2021 to ask for their consent for the late filing of Complainants’ Remand Brief, Proposed Findings of Fact and Appendix, which the undersigned had intended to file on March 11, 2021, to which counsel did not object. Complainants’ Remand Brief, Proposed Findings of Fact and Appendix were filed on March 17, 2021.

ARGUMENT

Complainants' Request that the Presiding Officer Accept the Late Filing of Complainants' Brief, Proposed Findings of Fact and Appendix on Remand is Warranted Based Upon Exceptional Circumstances and as Justice May Require

Standard of Review

46 C.F.R. 502.1 reads in relevant part, as follows:

The rules in this part govern procedure before the Federal Maritime Commission, hereinafter referred to as the "Commission,"...shall be construed to secure the just... and inexpensive determination of every proceeding.

46 C.F.R. 502.10 reads in relevant part, as follows:

Except to the extent that such waiver would be inconsistent with any statute, any of the rules in this part, except §§502.11 and 502.221, may be waived by the Commission or the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires.

46 C.F.R. 502.10 reads in relevant part, as follows

§502.102 Enlargement or reduction of time to file documents...

(b) Motions submitted after the scheduled filing date will be considered a request to accept late filing and must be accompanied by the document. These motions will only be considered when exceptional circumstances are shown or as justice may require.

As explained by the Presiding Officer in the matter of Santa Fe Discount Cruise Parking, Inc., d/b/a EZ Cruise Parking; Lighthouse Parking Inc.; and Sylvia Robledo d/b/a 81st Dolphin Parking v. The Board of Trustees of the Galveston Wharves; and the Galveston Port Facilities Corporation, (Order on Pending Motions and Partial Dismissal, FMC Docket No.: 14-06, dated November 21, 2014) 2014 FMC LEXIS 31:

Commission Rule 1 requires that its rules "be construed to secure the *just*, speedy, and inexpensive determination of every proceeding," 46 C.F.R. § 502.1 (emphasis added), and any of the rules in this part, except § 502.11 and 502.153, may be waived by... the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires." 46 C.F.R. § 502.10...The Commission

traditionally has sought to do equity rather than permit a party to be cut off from an opportunity to be heard due to a rigid or mechanical application of the Commission's rules." Verucci Motorcycles, LLC v. Senator International Ocean, LLC, FMC No. 06-05, Order at 4 (FMC May 7, 2008) (Order Reopening the Proceeding).

As further explained by the Presiding Officer in the matter of Muhammad Rana v. Michelle Franklin, d.b.a. "The Right Move Inc.", (Order Denying Motions for Default and Summary Decision, to Strike, and to Compel; Discharging Show Cause Order; and Scheduling Order, FMC Docket No.: 19-03, dated October 30, 2019), in the absence of a party demonstrating that it has been "...prejudiced by the late filing..." of a document with this Commission, such filing should not be stricken.

The Late Filing is Justified Based upon Exceptional Circumstances and as Justice May Require, and Respondents Have Not Been Prejudiced by the *de minimus* Delay

In the first instance, and pursuant to the Standard of Review as set forth above, the undersigned counsel is prepared to provide the details regarding an ongoing medical issue to the Presiding Officer (together with supporting documentation for *in camera* inspection if requested by the Presiding Officer), on the issue of exceptional circumstances.

Additionally, Counsel for Respondents had consented as of March 11, 2021 to the late filing. Further and as set forth above, complainants' *de minimus* late filing of their Remand Brief, Proposed Findings of Fact and Appendix by eight (8) days after the original filing date of March 9, 2021 cannot reasonably be construed to have prejudiced the parties herein. In light of the recent impact that the COVID-19 pandemic has had upon the entire world, the parties herein have understood the reasons for delay in the Commission's issuance of the Memorandum Opinion and Order, issued on October 29, 2020 and since that time, the parties have actively participated in these proceedings.

Inasmuch as the Presiding Officer may, pursuant to the Standard of Review set forth above, construe the Rules “...to secure the *just*, speedy, and inexpensive determination of every proceeding...” and waive certain rules (such as rules regarding the timing of the filings described herein) “... to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires...” and inasmuch as the Commission has “...traditionally has sought to do equity rather than permit a party to be cut off from an opportunity to be heard due to a rigid or mechanical application of the Commission’s rules...” it is respectfully submitted that in light of the circumstances, the Presiding Officer is requested to accept the *de minimus* late filing of Complainants’ Remand Brief, Proposed Findings of Fact and Appendix by eight (8) days after the original filing date.

RELIEF REQUESTED

It is therefore respectfully requested that the Presiding Officer now issue an Order accepting the late filing of Complainants’ Brief, Proposed Findings of Fact and Appendix on Remand for the exceptional circumstances set forth herein and as justice may require, and allow for additional time for the filing of respondents’ opposition papers and complainants’ reply pursuant to a revised briefing schedule to be determined by the Presiding Officer.

WHEREFORE, it is respectfully requested that Complainants’ motion be granted in its entirety.

Dated: March 19, 2021
Brooklyn, NY

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION REQUEST TO ACCEPT LATE FILING OF COMPLAINANTS' PROPOSED FINDINGS OF FACT AND APPENDIX ON REMAND, AND FOR OTHER RELIEF** upon Respondents' Counsel at the following address:

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Dated: Brooklyn, New York
March 19, 2021